

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: [REDACTED]	Team: Squad #16	CCRB Case #: 202405171	☐ Force ☒ Abuse	☒ Discourt. ☒ O.L.	☐ U.S. ☐ Injury
Incident Date(s) Saturday 05/25/2024 6:05 PM	18 Mo. SOL 11-25-2025	Location of Incident: West 211th St and 10th Avenue		Precinct: 34	
Date/Time CV Reported Sat, 05/25/2024 6:45 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 05/25/2024 6:45 PM		

Complainant/Victim	Type	Home Address
1. [REDACTED]	Comp/Victim	[REDACTED]
2. [REDACTED]	Victim	unknown
3. An Individual	Victim	

Subject Officer(s)	Shield	TaxID	Command
1. PO Marvin Jeanbaptiste	11466	970621	MN SU CRT
2. PO Shaddad Salem	19703	966828	MN SU CRT
3. PO Lallit Beharry	28207	966960	MN SU CRT
4. PO Meagan Camacho	04890	970438	MN SU CRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Daniel Estevez	17986	958563	MN SU CRT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Lallit Beharry	Abuse of Authority: Police Officer Lallit Beharry stopped the vehicle in which [REDACTED], [REDACTED] and an individual were occupants.	A . Within NYPD Guidelines
B . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem stopped the vehicle in which [REDACTED], [REDACTED] and an individual were occupants.	B . Within NYPD Guidelines
C . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem questioned [REDACTED].	C . Within NYPD Guidelines
D . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem questioned [REDACTED].	D . Within NYPD Guidelines
E . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem questioned an individual.	E . Within NYPD Guidelines
F . PO Lallit Beharry	Abuse of Authority: Police Officer Lallit Beharry frisked [REDACTED].	F . Within NYPD Guidelines
G . PO Lallit Beharry	Abuse of Authority: Police Officer Lallit Beharry searched [REDACTED].	G . Within NYPD Guidelines
H . PO Lallit Beharry	Abuse of Authority: Police Officer Lallit Beharry searched the vehicle in which [REDACTED], [REDACTED] and an individual were occupants.	H . Within NYPD Guidelines
I . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem searched the vehicle in which [REDACTED], [REDACTED] and an individual were occupants.	I . Within NYPD Guidelines
J . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem searched [REDACTED].	J . Substantiated
K . PO Meagan Camacho	Abuse of Authority: Police Officer Meagan Camacho frisked an individual.	K . Within NYPD Guidelines

Officer(s)	Allegation	Inv. Div. Recommendation
L . PO Marvin Jeanbaptiste	Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to [REDACTED].	L . Substantiated
M . PO Marvin Jeanbaptiste	Offensive Language: Police Officer Marvin Jeanbaptiste made remarks to [REDACTED] based upon race.	M . Substantiated
N . PO Marvin Jeanbaptiste	Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to [REDACTED].	N . Substantiated
O . PO Marvin Jeanbaptiste	Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to [REDACTED].	O . Substantiated
P . PO Marvin Jeanbaptiste	Offensive Language: Police Officer Marvin Jeanbaptiste made remarks to [REDACTED] based upon the gender of [REDACTED].	P . Substantiated
Q . PO Meagan Camacho	Discourtesy: Police Officer Meagan Camacho spoke discourteously to [REDACTED].	Q . Substantiated
R . PO Meagan Camacho	Discourtesy: Police Officer Meagan Camacho spoke discourteously to [REDACTED].	R . Substantiated
S . PO Meagan Camacho	Offensive Language: Police Officer Meagan Camacho made remarks to [REDACTED] based upon the perceived sexual orientation of [REDACTED].	S . Substantiated
T . PO Marvin Jeanbaptiste	Offensive Language: Police Officer Marvin Jeanbaptiste made remarks to [REDACTED] based upon the perceived sexual orientation of [REDACTED].	T . Substantiated
U . PO Marvin Jeanbaptiste	Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to [REDACTED].	U . Substantiated
V . PO Shaddad Salem	Abuse of Authority: Police Officer Shaddad Salem failed to provide [REDACTED] with a business card.	V . Within NYPD Guidelines
W . PO Meagan Camacho	Abuse of Authority: Police Officer Meagan Camacho failed to provide an individual with a business card.	W . Substantiated
X . PO Lallit Beharry	Abuse of Authority: Police Officer Lallit Beharry failed to provide [REDACTED] with a business card.	X . Unable to Determine

Case Summary

On May 25, 2024, [REDACTED] filed this complaint with the CCRB via the on-line website.

On May 25, 2024, at approximately 6:05 p.m., at West 211th Street and 10th Avenue in Manhattan, Police Officer Lallit Beharry and Police Officer Shaddad Salem, of Patrol Borough Manhattan North Community Response Team, stopped [REDACTED]'s vehicle (**Allegation (A)(B) Abuse of Authority, Within NYPD Guidelines**). [REDACTED]'s friends, [REDACTED] and [REDACTED] were also in his vehicle at the time. PO Salem then asked all the occupants in the vehicle, "Who was smoking in the car" (**Allegation (C)-(E) Abuse of Authority, Within NYPD Guidelines**). PO Beharry then frisked and searched [REDACTED] (**Allegation (F)(G) Abuse of Authority, Within NYPD Guidelines**). PO Salem and PO Beharry then searched [REDACTED]'s vehicle (**Allegations (H)(I) Abuse of Authority, Within NYPD Guidelines**). PO Salem also searched [REDACTED] (**Allegation (J) Abuse of Authority, Substantiated**). Police Officer Meagan Camacho of Patrol Borough Manhattan North Community Response Team then frisked [REDACTED] (**Allegation (K) Abuse of authority, Within NYPD Guidelines**). Police Officer Marvin Jeanbaptiste of Patrol Borough Manhattan North Community Response Team told [REDACTED], "You talk shit to niggas that can't talk shit back" (**Allegation (L) Discourtesy, Substantiated**) (**Allegation (M) Offensive Language, Substantiated**). PO Jeanbaptiste called [REDACTED] soft three times, calling him "soft as fuck," during one such instance (**Allegation (N) Discourtesy, Substantiated**). PO Jeanbaptiste later told [REDACTED] "I'll give your bitch ass a break" (**Allegation (O) Discourtesy, Substantiated**) (**Allegation (P) Offensive Language, Substantiated**). PO Camacho then called [REDACTED] a "bozo," and later said, "That's embarrassing. He's like 110 pounds talking like that" (**Allegation (Q) Discourtesy, Substantiated**). PO Camacho then told [REDACTED], "You get no pussy," "You want another man to suck your dick," and, "You gotta pay for pussy" (**Allegation (R) Discourtesy, Substantiated**) (**Allegation (S) Offensive Language, Substantiated**). PO Jeanbaptiste then told [REDACTED] "That's why you're in a car full of guys," (**Allegation (T) Offensive Language, Substantiated**) (**Allegation (U) Abuse of Authority, Substantiated**).

PO Salem failed to provide a business card to [REDACTED] (**Allegation (V) Abuse of Authority, Within NYPD Guidelines**). PO Camacho failed to provide a business card to [REDACTED] (**Allegation (W) Abuse of Authority, Substantiated**). PO Beharry failed to provide a business card to [REDACTED] (**Allegation (X) Abuse of Authority, Unable to Determine**).

None of the occupants were issued a summons or arrested.

This investigation is in possession of five BWC videos (**BR 07-11, 20**). This investigation is not in possession of any other video.

This case was originally assigned to Investigator [REDACTED] and was reassigned to Investigator [REDACTED] on October 10, 2024.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Lallit Beharry stopped the vehicle in which [REDACTED], and an individual were occupants.

Allegation (B) Abuse of Authority: Police Officer Shaddad Salem stopped the vehicle in which [REDACTED], and an individual were occupants.

[REDACTED] stated (**BR 01**) that on May 25, 2024, he was driving his BMW sedan with his friends, [REDACTED] and a friend whom he only knew as [REDACTED]. [REDACTED]'s BMW was registered under his name. The driver's window and all three-passenger windows were tinted, though [REDACTED] stated that the front window was less than 5% tint while the rear and passengers widows were likely around 20%. [REDACTED] made a U-turn on Sherman Avenue and then drove onto 10th

Avenue when he noticed an unmarked black sedan was following two car lengths behind him. [REDACTED] crossed a red traffic light at the intersection of West 211th Street and 10th Avenue. The unmarked police vehicle then activated its police siren. [REDACTED] stopped his vehicle on West 211th Street. The officers subsequently approached [REDACTED]'s vehicle.

The investigation was unable to get a statement from [REDACTED] and [REDACTED] because [REDACTED] did not wish to provide their contact information.

PO Beharry stated (BR 02) that he was driving an unmarked vehicle with PO Salem when he noticed that [REDACTED]'s vehicle's windows were heavily tinted. [REDACTED]'s vehicle then went through a red light. PO Beharry activated the sirens and attempted to stop [REDACTED]'s vehicle. [REDACTED]'s vehicle did not pull over immediately, and continued for a few blocks before eventually coming to a stop.

PO Salem's statement (BR 03) is largely similar to PO Beharry's, though he did not mention [REDACTED]'s vehicle running a red light.

PO Beharry's BWC (BR 08) shows at 1:53, PO Beharry telling [REDACTED] that they stopped his vehicle because of his tints and because he made a left turn while the light was red.

No one was issued a summons or arrested.

New York Vehicle and Traffic Law 1111(d)(1) (BR 13) states that no vehicle may run a red light until an indication to proceed is shown.

New York Vehicle and Traffic Law 375(12-a) (BR 14) states that no vehicle is to have a window that has a light transmittance of less than 70%.

Given that [REDACTED] acknowledged running a red light and PO Beharry's statement that he saw [REDACTED] run a red light, the investigation determined that PO Beharry was justified in stopping [REDACTED]'s vehicle for the traffic infraction. Therefore, it is recommended that **Allegations A and B** be closed as **Within NYPD Guidelines**.

Allegation (C) Abuse of Authority: Police Officer Shaddad Salem questioned [REDACTED], [REDACTED] and an individual.

Allegation (D) Abuse of Authority: Police Officer Shaddad Salem questioned [REDACTED].

Allegation (E) Abuse of Authority: Police Officer Shaddad Salem questioned an individual.

Allegation (F) Abuse of Authority: Police Officer Lallit Beharry frisked [REDACTED].

Allegation (G) Abuse of Authority: Police Officer Lallit Beharry searched [REDACTED].

Allegation (H) Abuse of Authority: Police Officer Lallit Beharry searched the vehicle in which [REDACTED], and an individual were occupants.

Allegation (I) Abuse of Authority: Police Officer Shaddad Salem searched the vehicle in which [REDACTED], and an individual were occupants.

[REDACTED] stated (BR 01) that after the officers collected his information, PO Beharry asked [REDACTED] if the officers could search the inside of their vehicle. [REDACTED] initially told PO Beharry "no," and became upset with the officers since he did not understand purpose of searching the vehicle. PO Beharry did not give a reason why he needed to search the vehicle. [REDACTED] then told [REDACTED] just let the officers search the vehicle since the stop would end quickly if the search was conducted. [REDACTED] then told PO Beharry, "Alright, go ahead," after which PO Beharry instructed [REDACTED] to exit the vehicle. PO Beharry asked [REDACTED] if he had anything on his person that could stab or cut him, to which [REDACTED] informed him that he did not. [REDACTED]

was wearing shorts, with his front right pocket having \$8,000 in cash that were folded and made a rectangular-shaped bulge, while his rear right side pocket had his wallet. PO Beharry then requested [REDACTED] face away from him and frisked his front pants pockets, his rear right pants pocket, and his waistband without [REDACTED]'s consent. PO Salem and PO Beharry then searched the inside of the vehicle. [REDACTED] did not see the entirety of the search, but believed PO Salem searched the front passenger side of the vehicle. PO Beharry searched the driver's side door and appeared to be looking underneath the car seats. PO Beharry also searched at least the rear seats of the vehicle.

PO Salem's BWC (**BR 09**) shows at 2:46, PO Salem shining his flashlight at [REDACTED] in the front passenger seat and asking, "Who's smoking in this car?" [REDACTED] responds that nobody is smoking. At 2:50, PO Salem states, "It smells like mad weed in here." The passengers in the vehicle respond that it is because they smoked earlier. At 2:55, PO Salem asks, "What's that tray right there," in reference to something beneath the legs of [REDACTED], but [REDACTED] does not answer. At 4:04, [REDACTED] is in the backseat telling the officers, "Y'all wanna just search us and get it over with?" "Everything good." PO Salem asks [REDACTED] if they are good with that, to which [REDACTED] responds in the front seat, "Yea, go ahead, bro," while at the same time [REDACTED] says, "Yea, we don't care, we just trying to get up out of here." Between 5:45 and 6:19, PO Salem searches [REDACTED]'s pant pockets (to be discussed in **Allegation G**). At 6:43, PO Salem begins searching the front passenger area of the vehicle, where a rolling tray can be seen on the floor. PO Salem then searches the rear passenger area.

PO Beharry's BWC (**BR 08**) is similar to PO Salem's. [REDACTED] saying, "Yea, go ahead, bro," can be heard at 4:05. At 4:10, PO Beharry asks [REDACTED] out of the vehicle and asks if he has anything sharp on him. [REDACTED] exits the vehicle and says, "No." At 4:18, [REDACTED] raises his arms, without being requested to do so, and tell PO Beharry, "You can check." At 4:22, PO Beharry asks if it is okay if he can search [REDACTED], to which he says, "Yea, go ahead." PO Beharry then frisks the front pocket of [REDACTED] and enters his front shorts pocket before then running the back of his hand against [REDACTED]'s waistband.

PO Beharry stated (**BR 02**) that when he approached [REDACTED]'s vehicle, he observed [REDACTED] and two other occupants inside of the vehicle. While PO Beharry was speaking to [REDACTED], one of the occupants in the back seat told the officers that there was nothing in the vehicle and asked the officers to search the car. PO Salem asked one of the occupants in the back if they were okay with that, to which PO Beharry recalled hearing [REDACTED] responding that they were "good" with that. PO Beharry asked [REDACTED] to exit the vehicle, after which he asked if [REDACTED] had anything sharp on him. [REDACTED] responded "no" and said that the officers could go ahead and check him. PO Beharry then asked if he could search [REDACTED], which [REDACTED] said he could. PO Beharry's reasoning in asking to search [REDACTED] was to make sure he had nothing sharp on him. PO Beharry did not know what [REDACTED] had in his pocket and was not sure if he had any weapons or anything sharp on him. PO Beharry noted that normally when he turns on the lights/sirens to stop a vehicle, people immediately pull over, but [REDACTED] did not. There was no other action that made PO Beharry suspect [REDACTED] had a weapon on him. [REDACTED] gave free and willing consent to be searched, and his demeanor was normal and compliant when being asked to be searched. PO Beharry could not recall the specific wording that [REDACTED] used when he gave consent. PO Beharry reviewed his BWC from 4:10 to 4:30, when [REDACTED] consents to the search. PO Beharry frisked and searched [REDACTED]'s shorts pockets and waistband. PO Beharry found nothing in [REDACTED]'s pockets besides keys and possibly money.

PO Salem and PO Beharry then searched the driver's side of the vehicle, searching the center console, the cubby behind the driver's seat, the door handles, and the backseats. They searched the vehicle because [REDACTED] gave consent. PO Beharry did not find any weapons or contraband, but

found some marijuana and an ashtray with burned blunts and ashes in it. When shown his BWC of [REDACTED] giving consent to the officers to search the vehicle, PO Beharry noted he could not hear [REDACTED]'s consent on BWC, but he affirmed that [REDACTED] gave consent during the incident.

PO Salem stated (**BR 03**) that when he approached the front passenger side window, it took the occupants approximately thirty seconds to lower down their windows even though he signaled multiple times for the passengers to lower the window. PO Salem noted that the tinted windows and the delay in lowering the windows could indicate attempted concealment of potential contraband. When the windows rolled down, PO Salem saw an ash tray that was in-between the legs of the front passenger and smelled weed from inside the vehicle. PO Salem noted that having the ash tray in the front passenger seat would be in violation of smoking cannabis in a vehicle. One of the passengers in the back of the vehicle asked the officers if they could search them because they were in a hurry. PO Salem asked the occupants if they were okay with that, and they responded that they were. PO Salem believed it was [REDACTED] who told the officers, "yes." When shown his BWC of someone in the vehicle saying, "Yea, go ahead, bro," after PO Salem asked if it was okay to search the vehicle, PO Salem noted that he heard the verbal consent at the time of incident and believed that it was [REDACTED]'s voice. PO Salem understood this to be consent to search the vehicle. PO Salem then searched the rear and front passenger side of the vehicle but did not find anything inside the vehicle.

In *People v. Gonzalez*, 39 N.Y.2d 122 (1976) (**BR 21**), it was ruled that consent is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness cannot be obtained through coercion whether it is actual or implicit, or overt or subtle. Voluntary consent must be determined from the circumstances of the situation.

New York Vehicle and Traffic Law 1227 (**BR 22**) states that the drinking of alcoholic beverages or consumption of cannabis, in a motor vehicle located upon the public highways or right-of-way public highway is prohibited. Any operator or passenger violating this section shall be guilty of a traffic infraction.

In *New York v. Hollman*, 79 N.Y. 2d 181 (**BR 23**), the court determined that in order for an officer to ask a civilian pointed or accusatory questions, they must have founded suspicion of criminality.

Given that the civilians confirmed that they smoked earlier, the investigation credits PO Salem's account that she smelled marijuana emanating from the vehicle. In addition to the smell of marijuana, PO Salem also observed the rolling tray in the front seat. As such, the investigation determined by a preponderance of the evidence that there was founded suspicion to believe that the occupants were smoking in the vehicle. Thus, PO Salem was justified in asking [REDACTED] who was smoking. Therefore, it is recommended that **Allegations C-E** be closed as **Within NYPD Guidelines**.

BWC footage shows that prior to PO Beharry asking [REDACTED] for consent to search him, [REDACTED] raises his arms up and tells PO Beharry that he could "check" him. [REDACTED] never protested the search. As such, the investigation determined that [REDACTED] provided voluntary consent again after PO Beharry asked if he could search. Thus, PO Beharry was justified in frisking and searching [REDACTED] upon obtaining voluntary consent. Therefore, it is recommended that **Allegations F and G** be closed as **Within NYPD Guidelines**.

When PO Salem asked the occupants in the car, "Are y'all okay with that?," [REDACTED] responds, "Yea, go ahead, bro," as heard on PO Salem and PO Beharry's BWC. Given that [REDACTED] and [REDACTED] gave verbal consent to the officers to search the vehicle without the officers asking to

search the vehicle or alluding to wanting to search the vehicle, the investigation found that the officers had voluntary consent to search the vehicle. Therefore, it is recommended that **Allegation H** and **I** be closed as **Within NYPD Guidelines**.

Allegation (J) Abuse of Authority: Police Officer Shaddad Salem searched [REDACTED]

This allegation was pleaded upon review of BWC.

The investigation was unable to interview [REDACTED].

PO Salem's BWC shows (BR 09) at 4:00, [REDACTED] tells PO Salem, "Y'all wanna just search us and get it over with? We good bro, everything good..." To which PO Salem responds, "Are y'all okay with that?" [REDACTED] responds, "Yea, we just trying to get up out of here." PO Salem tells [REDACTED] to give them a minute. At 4:12, PO Beharry asks [REDACTED] to step out of the vehicle. At 4:20, [REDACTED] attempts to exit the vehicle, but PO Beharry tells him to give him a minute. At 4:24, [REDACTED] tells PO Salem, as he is exiting out of the vehicle, "Y'all cannot search me." At 5:36, PO Salem signals for [REDACTED] to exit the vehicle. At 5:40, [REDACTED] asks PO Salem, "Do y'all have to search us" as he exits the vehicle. At 5:46, PO Salem asks [REDACTED] if he can search him, to which he responds, "Nah." PO Salem asks if [REDACTED] has anything on him, to which [REDACTED] responds, "Nah, I don't want to get searched." At 5:51, [REDACTED] squeezes his left shorts pocket, at which point PO Salem places his hand on the outside of the pocket and tells him not to reach for anything. [REDACTED] tells PO Salem that he has nothing on him. PO Salem asks [REDACTED] what he was reaching for. [REDACTED] responds, "I was just showing you that I got nothing on...you can check...aight, you can go check, bro." PO Salem then enters the left pocket of [REDACTED] and pulls out headphones and keys and then puts them back in [REDACTED]'s pocket. PO Salem then enters [REDACTED]'s front right shorts pocket.

PO Salem stated (BR 03) that [REDACTED] told him that he did not want to be searched when [REDACTED] was asked outside of the vehicle. PO Salem then asked [REDACTED] if he had any knives or anything else on him, after which [REDACTED] then reached for his left pocket. PO Salem placed his hand on [REDACTED]'s left pocket in response to this to prevent him from reaching into the pocket. PO Salem acknowledged that [REDACTED] had already denied consent to be searched, but stated that it did not give [REDACTED] the right to reach for that pocket. [REDACTED] then voluntarily gave consent to search by telling PO Salem he could go ahead and search. PO Salem then searched the inside of [REDACTED]'s pockets, though he did not frisk them, and found keys and a mask. PO Salem did not see any noticeable bulges other than the keys, and did not see anything that was indicative of a weapon.

When shown his BWC from 5:30 to 5:54, where [REDACTED] initially refuses consent to be searched and then reached for his pocket, PO Salem stated that he observed what he believed to be a large clump of keys in [REDACTED]'s wallet that was approximately three inches with no definitive outlines. When PO Salem placed his hand on the pocket, he was not trying to feel any objects, but was just securing the entrance of the pocket.

When shown his BWC from 5:54 to 6:05, where [REDACTED] tells PO Salem he can go ahead and check him, PO Salem stated that this was voluntary consent by [REDACTED], and it was not coerced.

In *People v. Gonzalez*, 39 N.Y.2d 122 (1976) (BR 21), it was ruled that consent is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness cannot be obtained through coercion whether it is actual or implicit, or overt or subtle. Voluntary consent must be determined from the circumstances of the situation.

In *People v De Bour*, 40 N.Y.2d 210 (1976) (**BR 16**), the court concluded that, in order to frisk an individual, officers must reasonably suspect that the individual is armed and dangerous. It noted that behavior which is susceptible of innocent as well as culpable interpretation does not constitute probable cause, and innocuous behavior alone does not generate a founded or reasonable suspicion that a crime is at hand. The court further stated that a pocket bulge, as opposed to a waistband bulge, could be caused by any number of innocuous objects.

While [REDACTED] eventually gave consent to PO Salem to search him, [REDACTED] refused to be searched at least three times. Despite this refusal, PO Salem continued to press the issue of what was in [REDACTED]'s pocket. Given the circumstances and [REDACTED]'s reluctance, the investigation determined by a preponderance of the evidence that [REDACTED] did not offer voluntary consent, given that PO Salem continued to make comments about his pocket after [REDACTED] refused to be searched. Therefore, it is recommended that **Allegation J** be closed as **Substantiated**.

Allegation (K) Abuse of Authority: Police Officer Meagan Camacho frisked an individual.

This allegation was pleaded upon review of BWC.

The investigation was unable to interview [REDACTED]

PO Camacho's BWC (**BR 10**) shows at 1:00, PO Camacho arriving at the scene and approaching [REDACTED]'s vehicle, where [REDACTED] is already at the rear of his vehicle. At 1:11, [REDACTED] attempts to speak to PO Camacho from the back seat, but she tells him to hold on. At 1:25, PO Camacho shines her flashlight at the back seat where [REDACTED] is sitting. At 1:28, [REDACTED] asks PO Camacho, "Can I get searched?" PO Camacho responds, "Yes, but just give us a second." PO Camacho lets [REDACTED] know that he will be let out of the vehicle, but they are only letting out the individuals in the car one by one. At 2:07, PO Camacho gets [REDACTED] to exit the vehicle, and at 2:20, PO Camacho starts frisking his chest, then his waistband, and then his legs. PO Camacho concludes her frisk at 2:40.

Police Officer Daniel Estevez's, of Patrol Borough Manhattan North Community Response Team, BWC (**BR 20**) is similar to PO Camacho's BWC. From 2:20, when PO Camacho begins her frisk, to 2:40 when she concludes her frisk, PO Camacho does not enter [REDACTED] pockets at any point.

PO Camacho stated (**BR 05**) that when she arrived at the scene, one of the individuals in the back (identified via the investigation as [REDACTED]) was telling her to hurry and up and search him, and to get him out of the car. Once [REDACTED] was out of the car, he asked PO Camacho to hurry up and search him. PO Camacho considered this to be consent to search, so she then frisked his legs, waistband, and torso, but did not enter any pockets. [REDACTED] did not protest being frisked. When shown her BWC from 1:00 to 1:35, which shows [REDACTED] in the back of the vehicle asking PO Camacho, "Can I get searched," PO Camacho acknowledged this was when [REDACTED] gave her consent to search him.

In *People v. Gonzalez*, 39 N.Y.2d 122 (1976) (**BR 21**), it was ruled that consent is voluntary when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice. Voluntariness cannot be obtained through coercion whether it is actual or implicit, or overt or subtle. Voluntary consent must be determined from the circumstances of the situation.

Since [REDACTED] asked to be searched by PO Camacho, and this was done willingly and without coercion from officers, the investigation determined that [REDACTED] provided voluntary consent to PO

Camacho to frisk him. Therefore, it is recommended that **Allegation K** be closed as **Within NYPD Guidelines**.

Allegation (L) Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to

Allegation (M) Offensive Language: Police Officer Marvin Jeanbaptiste made remarks to based upon race.

This allegation was pleaded upon review of BWC footage.

PO Jeanbaptiste's BWC (**BR 11**) shows at 4:19, after PO Jeanbaptiste tells to listen, tells PO Jeanbaptiste, "Shut the fuck up, nigga." At 4:23, PO Jeanbaptiste tells, "Yo, playah, let me tell you something. You love to talk shit to niggas who can't talk shit back. I wish you could talk shit and I could talk shit back."

PO Jeanbaptiste stated (**BR 04, 06**) that when interacting with, he felt that was being disrespectful through his vulgar language (like swearing) used to insult he and his fellow officers, which made him deliver "a little bit of disrespect back." PO Jeanbaptiste told "You talk shit to niggas who can't talk shit back," because disregarded PO Jeanbaptiste's previous statements that he wanted a smooth car stop and instead cursed at PO Jeanbaptiste. In his CCRB interview, PO Jeanbaptiste said that this statement meant that he was an officer in uniform that is supposed to conduct himself in a very respectful way, which means he and are not on the "same level," because PO Jeanbaptiste is not a civilian. As such, PO Jeanbaptiste was telling that was not going to get the response he was expecting from his language. PO Jeanbaptiste stated that the purpose of using the words "shit" and "nigga" was because PO Jeanbaptiste was using the same type of language as. 's constant use of derogatory language is what eventually "got to" PO Jeanbaptiste.

The Mission, Vision, and Values statement of the NYPD (**BR 12**) states that officers are to maintain a higher standard of integrity than is generally expected of others. Officers are to respect the dignity of each individual and render services with courtesy and civility.

Administrative Guide 304-06 (**BR 24**) prohibits using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

Though was using derogatory language towards PO Jeanbaptiste, officers are held to a higher standard than that of civilians and must be civil during interactions with the public. As PO Jeanbaptiste acknowledged, 's statements affected him and thus, he used the same language back to. Moreover, PO Jeanbaptiste acknowledged that his comments were disrespectful. It is undisputed that his above statement served no purpose and was an offensive racial remark. Therefore, it is recommended that **Allegations L** and **M** be closed as **Substantiated**.

Allegation (N) Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to

stated (**BR 01**) that PO Jeanbaptiste called him soft, which he felt offended by since he believed that PO Jeanbaptiste was calling him scared.

PO Jeanbaptiste's BWC (**BR 11**) shows at 4:30, PO Jeanbaptiste tells, "And you know I can't say nothing back. So how tough are you, dawg? You're soft, bro." At 4:38, PO Jeanbaptiste tells, "You soft as fuck, bro." PO Jeanbaptiste then tells, "120, dawg. You

soft as fuck, bro.” At 5:04, PO Jeanbaptiste tells [REDACTED] “You soft, bro.” At 6:37, as [REDACTED] is walking away, PO Jeanbaptiste tells [REDACTED], “Softy.”

PO Jeanbaptiste stated (BR 04,06) that he called [REDACTED] soft because he was acting like a tough guy, but he did not feel that [REDACTED] was a tough guy. PO Jeanbaptiste’s objective was to get [REDACTED] to calm down. When asked what he meant by saying, “120, dawg. You soft as fuck,” PO Jeanbaptiste stated that “120” was in reference to [REDACTED]’s stature, as he did not appear to be tough. The use of the word “fuck” was due to PO Jeanbaptiste using the language that [REDACTED] used.

The Mission, Vision, and Values statement of the NYPD (BR 12) states that officers are to maintain a higher standard of integrity than is generally expected of others. Officers are to respect the dignity of each individual and render services with courtesy and civility.

DCT Case Number 2015-15012 (BR 25) states that while the use of profanity by officers is generally prohibited, in a dynamic situation in which officers are attempting to gain control, the use of profanity may be justified.

While PO Jeanbaptiste stated he called [REDACTED] soft to calm him down, the investigation determined that commenting on someone’s size to explain that they are not tough is discourteous and unnecessarily escalates the situation. Furthermore, given that the incident was neither stressful nor chaotic as all of the occupants had already been frisked and/or searched, and that PO Jeanbaptiste stated that he said “fuck” to mimic [REDACTED]’s language, the investigation determined by a preponderance of the evidence that PO Jeanbaptiste’s discourteous language was inexcusable. Therefore, it is recommended that **Allegation N** be closed as **Substantiated**.

Allegation (O) Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to

[REDACTED]:

Allegation (P) Offensive Language: Police Officer Marvin Jeanbaptiste made remarks to [REDACTED] based upon the gender of [REDACTED].

This allegation was pleaded upon review of BWC footage.

PO Jeanbaptiste’s BWC (BR 11) shows at 6:05, PO Jeanbaptiste telling [REDACTED], “You know, I’ll give you a little…You know if I could say what I want, I’ll say what I want. It’ll really piss you off. I’ll give your bitch ass a break.”

PO Jeanbaptiste stated (BR 04, 06) that his statement had no police purpose and that he probably could have just given [REDACTED] the ticket and showed him more discretion instead of being verbal about it. PO Jeanbaptiste stated that he made the statement in the heat of the moment and that his use of the word “bitch” was not about [REDACTED]’s gender or sexuality.

The Mission, Vision, and Values statement of the NYPD (BR 12) states that officers are to maintain a higher standard of integrity than is generally expected of others. Officers are to respect the dignity of each individual and render services with courtesy and civility.

Administrative Guide 304-06 (BR 24) prohibits using discourteous or disrespectful remarks regarding another person’s age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

Although PO Jeanbaptiste stated he made the statement in the heat of the moment, and despite PO Jeanbaptiste’s account on his intentions, it is undisputed that calling [REDACTED] a “bitch ass” was

offensive and served no purpose. Thus, the investigation determined that PO Jeanbaptiste's offensive language based on gender was inexcusable. Therefore, it is recommended that **Allegations O and P** be closed as **Substantiated**.

Allegation (Q) Discourtesy: Police Officer Meagan Camacho spoke discourteously to [REDACTED]

Allegation (R) Discourtesy: Police Officer Meagan Camacho spoke discourteously to [REDACTED]

Allegation (S) Offensive Language: Police Officer Meagan Camacho made remarks to [REDACTED] **based upon the perceived sexual orientation of** [REDACTED]. [REDACTED] stated (BR 01) that he told PO Camacho that if she wanted to be useful, she should, "Go sell some pussy." PO Camacho said in response, "Oh yea, that's why you ain't fuck no bitches." [REDACTED] and PO Camacho then began screaming at one another.

PO Camacho's BWC (BR 10) shows at 3:07, PO Camacho tells [REDACTED] to get his hands out of his pocket, to which [REDACTED] tells PO Camacho they already checked his pocket. PO Camacho tells [REDACTED] that she does not care and to get his hands out of his pockets. [REDACTED] tells PO Camacho to calm down. PO Camacho replies, "You calm down. Stop talking." [REDACTED] tells PO Camacho, "Get the fuck outta here." At 3:13, PO Camacho tells [REDACTED], "You're a bozo." At 3:19, [REDACTED] tells PO Camacho, "Yo pussy stink." PO Camacho then responds, "You don't get no pussy." At 4:26, [REDACTED] tells PO Jeanbaptiste, "Suck my dick." At 4:29, PO Camacho states, "That sounds mook, bro." At 4:37, PO Camacho tells [REDACTED] as he talking to PO Jeanbaptiste, "You want a man to suck your dick?" At 6:34, as [REDACTED] is walking to his car, he tells PO Camacho, "Dirty ass pussy ho." PO Camacho then responds, "You get no pussy." At 6:38, PO Camacho laughs as she is walking towards her RMP and tells [REDACTED], "You like 110, my brotha." At 6:44, PO Camacho tells [REDACTED], "You gotta pay for pussy." At 6:40, as [REDACTED] is returning to his car, PO Camacho tells [REDACTED], "You like 110 [pounds], my brothah."

PO Camacho stated (BR 05) that [REDACTED] was speaking to her in an unprofessional and demeaning manner. PO Camacho could not recall what [REDACTED] exactly said, but noted that he was using a lot of foul language. When asked why she called [REDACTED] a "bozo," PO Camacho stated that she did not mean for it to be discourteous and was wondering why [REDACTED] was using foul language and behaving the way he was during a routine car stop. However, PO Camacho acknowledged that her statement was discourteous. When asked what she meant when she told [REDACTED], "You're like 110, my brothah," PO Camacho explained that she did not mean to offend [REDACTED]. PO Camacho was not aware if [REDACTED] heard her. PO Camacho acknowledged that this statement was discourteous.

When shown her BWC of her telling [REDACTED], "That sounds mook, bro," PO Camacho stated that she was thinking out loud when she made the statement. When asked what the term "mook" meant to her, PO Camacho stated that she knew someone named "Mook," and [REDACTED] sounded like someone she knows.

When shown her BWC of her asking [REDACTED], "You want another man to suck your dick?" PO Camacho explained that she made the statement because [REDACTED] kept telling PO Jeanbaptiste to "Suck my dick," and she was confused as to why he would want an officer to do that. PO Camacho was not making a reference to [REDACTED]'s sexual orientation when she made this statement. PO Camacho said she was not directly talking to [REDACTED] when she made the statement.

When shown her BWC of her telling [REDACTED], "You like 110, my brothah," PO Camacho stated that the statement did not mean anything, and she did not mean to offend him, nor was she aware

that he heard her. PO Camacho acknowledged that this statement was discourteous.

When shown her BWC of telling [REDACTED] “You gotta pay for pussy,” PO Camacho explained that she was using the language that was used towards her and that she did not introduce any new language. PO Camacho was not trying to communicate that [REDACTED] could not attract women. PO Camacho did not make this statement in reference to anything and it was not a statement about [REDACTED].

The Mission, Vision, and Values statement of the NYPD (**BR 12**) states that officers are to maintain a higher standard of integrity than is generally expected of others. Officers are to respect the dignity of each individual and render services with courtesy and civility.

Administrative Guide 304-06 (BR 24) prohibits using discourteous or disrespectful remarks regarding another person’s age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

Though [REDACTED] insulted PO Camacho, officers are to conduct themselves to a higher level of conduct than the general public and are to be courteous when speaking to them. PO Camacho calling [REDACTED] a “bozo,” serves no police purpose and can only serve to belittle [REDACTED]. Furthermore, commenting about [REDACTED]’s weight in order to show that he is weak and of small stature was discourteous, and from the context, it was used as an insult. PO Camacho stated that she was repeating the same language [REDACTED] used, but acknowledged that the statements towards [REDACTED] were discourteous. Thus, the investigation determined that it is inexcusable for PO Camacho to respond to [REDACTED]’s disrespectful remarks with additional disrespectful remarks. Therefore, it is recommended that **Allegation Q** be closed as **Substantiated**.

It is undisputed that PO Camacho told [REDACTED], “You gotta pay for pussy,” and, “You get no pussy,” were offensive comments towards [REDACTED]’s sexual orientation. In the context of PO Camacho asking [REDACTED] “You want another man to suck your dick,” [REDACTED] was, at that time, telling a male officer, PO Jeanbaptiste, “Suck my dick.” While PO Camacho stated it was not her intent to question [REDACTED]’s sexual orientation, emphasizing that it was a male officer [REDACTED] made the statement to imply the act is homoerotic and questions his sexual orientation. Therefore, it is recommended that **Allegations R and S** be closed as **Substantiated**.

Allegation (T) Offensive Language: Police Officer Marvin Jeanbaptiste made remarks to [REDACTED] based upon the perceived sexual orientation of [REDACTED].

Allegation (U) Discourtesy: Police Officer Marvin Jeanbaptiste spoke discourteously to [REDACTED].

This allegation was pleaded upon the review of BWC footage.

PO Jeanbaptiste’s BWC (**BR 11**) shows at 6:41, after PO Camacho tells [REDACTED] “You get no pussy,” PO Jeanbaptiste tells [REDACTED], “That’s why you in a car full of guys,” as [REDACTED] is entering his vehicle.

When shown his BWC of him telling [REDACTED], “That’s why you in a car full of guys,” PO Jeanbaptiste stated (**BR 04, 06**) that he did not know why he said it. PO Jeanbaptiste stated that [REDACTED] was not with any females at the moment. PO Jeanbaptiste said he was not commenting on [REDACTED]’s sexual orientation.

The Mission, Vision, and Values statement of the NYPD (**BR 12**) states that officers are to maintain a higher standard of integrity than is generally expected of others. Officers are to respect

the dignity of each individual and render services with courtesy and civility.

Administrative Guide 304-06 (BR 24) prohibits using discourteous or disrespectful remarks regarding another person's age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability.

Telling [REDACTED] "That's why you in a car full of guys," in the context of PO Camacho saying that [REDACTED] "get no pussy," implies that being in a car with only men is an insult and serves only to question his sexual orientation. Given the argumentative nature of the conversation, the investigation determined that PO Jeanbaptiste's statement was meant to insult [REDACTED]. By saying [REDACTED] was in a car full of guys, PO Jeanbaptiste made an offensive statement regarding [REDACTED]'s sexual orientation. Therefore, it is recommended that **Allegation T and U** be closed as **Substantiated**.

Allegation (V) Abuse of Authority: Police Officer Shaddad Salem failed to provide [REDACTED] with a business card.

Allegation (W) Abuse of Authority: Police Officer Meagan Camacho failed to provide [REDACTED] with a business card.

Allegation (X) Abuse of Authority: Police Officer Lallit Beharry failed to provide [REDACTED] with a business card.

[REDACTED] stated (BR 01) that he was not given a business card by any officers except PO Jeanbaptiste. [REDACTED] did not know if the other occupants of the vehicle were offered business cards by officers.

The investigation was unable to obtain a statement from [REDACTED] or [REDACTED] as they were uncooperative during the investigation.

PO Salem's BWC (BR 09) shows at 10:39, while PO Salem is standing next to the front passenger seat where [REDACTED] is sitting, asks [REDACTED] and [REDACTED] "You guy's need any business cards or anything?" [REDACTED] continues to look forward in the passenger seat and does not acknowledge PO Salem's question. PO Salem does not hand a business card to [REDACTED].

PO Beharry's BWC (BR 08) shows, at 10:34, PO Beharry asking [REDACTED] if he wanted a business card. [REDACTED] responds, "Yeah, let me get this bitch ass nigga's business card," and points to PO Jeanbaptiste and then begins to argue with PO Jeanbaptiste. PO Jeanbaptiste hands his business card to [REDACTED] at 10:55. At 10:57, [REDACTED] turns to PO Beharry and tells him, "Give me my shit," as he takes what appears to be his vehicle's documents and ID from PO Beharry's hands. Though, it is unclear if PO Beharry handed him anything else.

PO Camacho's BWC (BR 10) shows that she does not offer [REDACTED] a business card.

PO Salem stated (BR 03) that when he asked [REDACTED] if he needed a business card, [REDACTED] did not answer. PO Salem believed he saw [REDACTED] shake his head no. PO Salem took the headshake and the lack of a verbal response as a refusal to accept a business card.

PO Beharry stated (BR 02) that he gave [REDACTED] a business card at the end of the incident. When shown his BWC of [REDACTED] taking items out of his hand after being given PO Jeanbaptiste's business card, PO Beharry stated that amongst the items he gave was his business card. PO Beharry could not recall if he had already given [REDACTED] his license back at this point.

PO Camacho stated (**BR 05**) that she did not offer a business card to [REDACTED] and acknowledged that she would be required to give him a business card.

Administrative Guide 304-11 (**BR 17**) states that officers are to offer a business card upon the conclusion of law enforcement activities such as a frisk, search of persons or property, or a stop.

It is undisputed that PO Salem remained next to [REDACTED] for approximately 10 seconds after asking if he needed a business card. Given the distance between PO Salem and [REDACTED], the investigation determined that [REDACTED] was within earshot of the request. Although [REDACTED] did not answer, [REDACTED] also did not request for PO Salem's business card after he offered it. Thus, the investigation determined that PO Salem's verbal offer satisfied the requirement as per the Administrative Guide. Therefore, it is recommended that **Allegation V** be closed as **Within NYPD Guidelines**.

Since PO Camacho frisked [REDACTED] she was required to provide him with a business card. PO Camacho also acknowledged that she was required to do so but did not offer one to him. Thus, the investigation determined that PO Camacho failed to provide a business card to [REDACTED]. Therefore, it is recommended that **Allegation W** be closed as **Substantiated**.

Though [REDACTED] stated that no officer handed him a business card except PO Jeanbaptiste, PO Beharry stated that he handed his business card with the stack of documents he returned to [REDACTED]. However, the video does not conclusively show whether PO Beharry's business card was within the stack of documents. Therefore, it is recommended that **Allegation X** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- [REDACTED] has been party to two CCRB complaints and has been named as a victim in eighteen allegations (**BR 18**):
 - CCRB case #202306209 involved four allegations of failure to provide RTKA card, which were substantiated, two allegations of a frisk, one of which was closed as unable to determine and another as miscellaneous-subject terminated, one allegation of discourteous word, which was closed as unable to determine, one allegation of vehicle search, which was closed as within NYPD Guidelines, and one allegation of search of person, which was closed as miscellaneous-subject terminated.
- Without additional information for [REDACTED] and [REDACTED] the investigation was unable to search their CCRB histories.
- PO Salem has been a member of service for six years and has been a subject in five CCRB complaints and eleven allegations, none of which were substantiated. PO Salem's CCRB history does not reflect any apparent pattern pertinent to this investigation.
- PO Camacho has been a member of service for four years and has been a subject in six CCRB complaints and twenty-two allegations, none of which were substantiated. PO Camacho's CCRB history does not reflect any apparent pattern pertinent to this investigation.
- PO Beharry has been a member of service for six years and has been a subject in ten CCRB complaints and thirty allegations, of which seven were substantiated:
 - CCRB Case #202207862 involved two substantiated allegations of misleading official statement, one substantiated allegation of bias-based policing, one substantiated allegation of improper use of body-worn camera, and one substantiated of unlawful arrest against PO Beharry. The Board recommended charges and the NYPD has not yet imposed discipline.
 - CCRB Case #202311398 involved one substantiated allegation of a question and one substantiated allegation of a search of person. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline. PO Beharry's CCRB history

- PO Jeanbaptiste has been a member of service for four years and has been a subject in seventeen CCRB complaints and forty-eight allegations, of which one was substantiated:
 - CCRB Case #202305127 involved a substantiated allegation of a question against PO Jeanbaptiste. The Board recommended command discipline A and the NYPD took no disciplinary action.
 - PO Jeanbaptiste's CCRB history does not reflect any patterns pertinent to this investigation.

- [REDACTED] declined to mediate this complaint.
- As of May 5, 2025, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 26**).

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Investigator: _____
Signature

Print Title & Name

06/27/2025
Date

Squad Leader: 07/01/2025
Signature Print Title & Name Date

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____